

# Referral brief

Prepared for Simtec Attractions

|           |                                                                                                                                                                                                        |
|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| MATTER    | Heart Hotel / Kulik River                                                                                                                                                                              |
| GEOGRAPHY | Clark County                                                                                                                                                                                           |
| PERIOD    | Every record held, 2026-04-29 to 2026-08-03                                                                                                                                                            |
| PIPELINE  | hospitality                                                                                                                                                                                            |
| FILTERS   | dormant excluded   context records included   this brief is restricted to one matter; the client scope (5 stages and 12 venue types) is what made it eligible and did not narrow this document further |
| BASIS     | 1 project, 24 records                                                                                                                                                                                  |

Provenance legend. This report separates three kinds of statement so the reader can weigh each. [RECORD] marks facts drawn from the government filings we captured, each with the link to the filing itself. [PRESS] marks facts reported in the press or otherwise beyond our filing record. [ASSESSMENT] marks our own read, offered as judgment rather than as fact.

## About this brief

One matter, the record behind it, and the limits of that record.

[ASSESSMENT] This is a referral brief on Heart Hotel / Kulik River in Clark County. It is about that one matter and is written to be forwarded to someone who will act on it, so it is not scoped to a period: it sets out everything we hold. That is 6 captured filings and 16 press reports, dated between 2026-04-29 and 2026-08-03. The filings are what we can show you and each carries the link to the document itself. The press is reported elsewhere, attributed to its publisher, and is not our record. Any judgement in this brief is Philip's, is labelled as his, and appears only under a heading that says so.

## The project

Heart Hotel / Kulik River. Clark County | filed.

[RECORD] Tentative map consisting of 1 commercial lot on 11.95 acres in a CR (Commercial Resort) Zone within the Airport Environs (AE-60) Overlay.  
[quoted from the filing](#)

Records show 6 filings and 16 press reports between 2026-04-29 and 2026-08-03.

Our filing record for this project is 6 captured filings dated between 2026-05-26 and 2026-07-21. The 16 press reports dated between 2026-04-29 and 2026-08-03 listed here are beyond that record and are attributed to their publisher. Where the two differ, the filings are what we can show.

The stage above is what our captured filings support: filed. The press reports listed below describe this matter as approved. No filing we hold states that, so the stage says filed and the difference is our capture rather than a contradiction between the two.

Of the 24 records captured for this project, 22 are printed above; the other 2 are the same filing captured more than once - a bilingual minute, or a document captured page by page - and are shown once.

What the record does not say: no party carries a phone number or an email address and 1 of the 22 captured items carries no date.

### Where this stands

[RECORD] HELD: 07/22/26. That date has passed. We have captured no filing on this matter since, though a press report dated 2026-08-03 is later than it.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)

### Record provenance (our captured filings)

- [RECORD] 2026-05-26 TM-26-500056. Tentative map approval for 1 commercial lot on 11.95 acres in a CR (Commercial Resort) Zone within the Airport Environs (AE-60) Overlay.  
[Clark County Planning/Zoning Minutes, 26 May 2026](#)
- [RECORD] 2026-05-26 VS-26-0218. Vacate and abandon easements of interest to Clark County located between Mandalay Bay Road and Four Seasons Drive, and Las Vegas Boulevard South and Haven Street; and a portion of a right-of-way being Mandalay Bay Road located between Las Vegas Boulevard South and Haven Street.  
[Clark County Planning/Zoning Minutes, 26 May 2026](#)
- [RECORD] 2026-05-26 UC-26-0219. Use Permits to expand gaming enterprise district, construct resort hotel, and construct recreational facility; Waiver of Development Standards for non-standard improvements in right-of-way; Design Review for proposed resort hotel and recreational facility.  
[Clark County Planning/Zoning Minutes, 26 May 2026](#)
- [RECORD] 2026-07-21 UC-26-0219. Holdover use permits to expand the gaming enterprise district, resort hotel, and recreational facility; Waiver of development standards to allow non-standard improvements in the right-of-way; Design review for a proposed resort hotel and recreational facility. 11.95 acres. Contact: Nancy Amundsen, Brown, Brown, & Premsrut. No phone or email in the record.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] 2026-07-21 TM-26-500056. Holdover tentative map. 11.95 acres. Contact: Nancy Amundsen, Brown, Brown, & Premsrut. No phone or email in the record.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] 2026-07-21 VS-26-0218. Vacate and abandon easements of interest to Clark County located between Mandalay Bay Road and Four Seasons Drive, and Las Vegas Boulevard South and Haven Street; and a portion of a right-of-way being Mandalay Bay Road located between Las Vegas Boulevard South and Haven Street within Paradise. Contact: Nancy Amundsen, Brown, Brown, & Premsrut. No phone or email in the record.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)

#### Stated in the filings

- [RECORD] Staff Recommendation: Approval.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] COUNTY COMMISSION ACTION: June 17, 2026 – HELD – To 07/22/26 – per the applicant.
- [RECORD] TAB/CAC: Paradise - approval.
- [RECORD] APN: 162-28-301-001; 162-28-301-002; 162-28-301-010; 162-28-301-032; 162-28-301-033.
- [RECORD] LAND USE PLAN: WINCHESTER/PARADISE - ENTERTAINMENT MIXED-USE.
- [RECORD] Zone: CR (Commercial Resort).
- [RECORD] Site Acreage: 11.95.
- [RECORD] Project Type (UC-26-0219): Resort Hotel & Recreational Facility.
- [RECORD] Project Type (TM-26-500056): Commercial subdivision.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] Number of Rooms: 752.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] Number of Stories: 29 (Hotel Tower)/6 (Parking Garage)/2 (Venue Buildings).
- [RECORD] Building Height (feet): 317 (Hotel Tower to Roof)/272.5 (First Hotel Parapet)/70 (Hotel Podium)/295 (Sky Venue)/93 (Parking Garage)/41 (Venue Buildings).
- [RECORD] Square Feet: 567,855 (Hotel Tower)/721,805 (Podium & Tenant Space Buildings)/438,480 (Parking Garage)/1,728,140 (Total).
- [RECORD] Parking Required/Provided: 1,340/1,421.
- [RECORD] Number of Lots: 1.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] Sustainability Required/Provided: 7/7.5.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)

#### Design and program (press-reported)

- [PRESS] rooms: 752 rooms; storeys: 29-story; site: 12-acre. "Kulik River Capital purchased the nearly 12-acre property and proposed building 29-story hotel tower with 752 rooms, a six-story parking garage, a casino floor, restaurants, entertainment, convention space and pool."  
[news3lv.com](#)

[PRESS] amount reported: \$70 million. "Developer Eli Applebaum, through Kulik River Capital, bought the nearly 12-acre plot this spring for \$70 million and is now advancing plans for 752 rooms, convention space, gaming, dining, retail and a pool deck, per Sportshandle ."  
[ggbmagazine.com](https://ggbmagazine.com)

## The people

Every party our filings name, and how the record says to reach them.

[RECORD] Kulik River Capital, LLC - applicant. No phone or email in the record.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)

[RECORD] Nancy Amundsen - representative, contact named in the filing. Brown, Brown, & Premsrirut. 520 S. 4th Street, Las Vegas, NV 89101. No phone or email in the record.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)

[PRESS] Eli Applebaum - named in press coverage. No phone or email in the record.  
[traveltomorrow.com](https://traveltomorrow.com)

## Conditions of approval

51 conditions across 3 concurrent matters. Each set binds its own application.

UC-26-0219 (2026-07-21): 28 conditions

[RECORD] 1. Prior to the issuance of building permits, or subdivision mapping, mitigate the impacts of the project including, but not limited to, issues identified by the technical reports and studies, and issues identified by the Board of County Commissioners or commit to mitigating the impacts of the project by entering into a Development Agreement with Clark County;  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)

[RECORD] 2. Allow the following permits prior to the adoption of the Development Agreement: all grading, including excavation and underground utilities, construction below grade level, and structural first lift with initial foundation work;

[RECORD] 3. Prior to the issuance of building and grading permits, enter into a Performance Agreement with Clark County which includes a Decommissioning Plan specifying the actions to be taken by the Developer or County in the event construction of the project is stopped or abandoned;

[RECORD] 4. Bond or other form of financial security, acceptable to Clark County, shall be provided with the Performance Agreement as security of the full and complete fulfillment of the decommissioning actions identified in the Decommissioning Plan;

[RECORD] 5. Certificate of Occupancy and/or business license shall not be issued without approval of a Certificate of Compliance, and payment of the tree fee-in-lieu is required for any required trees waived.

[RECORD] 6. Applicant is advised within 4 years from the approval date the application must commence or the application will expire unless extended with approval of an extension of time; that this application is contingent upon obtaining a license from the State of Nevada and Clark County Business License Department; failure to abide by and faithfully comply with the conditions of approval, Clark County Code, and the provisions of the Nevada Revised Statutes or Nevada Administrative Code may result in revocation of this application; approval of this application does not constitute or imply approval of any other County issued permit, license or approval; a substantial change in circumstances or regulations may warrant denial or added conditions to an extension of time; the extension of time may be denied if the project has not commenced or there has been no substantial work towards completion within the time specified; changes to the approved project will require a new land use application; and the applicant is solely responsible for ensuring compliance with all conditions and deadlines.

[RECORD] 7. Drainage study and compliance;

[RECORD] 8. Traffic study and compliance;

[RECORD] 9. Full off-site improvements;

[RECORD] 10. Right-of-way dedication per Las Vegas South Survey RS-25-500117;

[RECORD] 11. If required by the Regional Transportation Commission (RTC), dedicate and construct right-of-way for a combination right-turn lane and bus turn-out on Mandalay Bay Road with a 5 foot by 50 foot bus shelter pad behind the sidewalk accordance with RTC standards;

[RECORD] 12. Las Vegas South Survey must be recorded by the applicant prior to the issuance of building permits;

- [RECORD] 13. Applicant to coordinate with Public Works - Development Review for all driveways on Las Vegas Boulevard;
- [RECORD] 14. Execute a License and Maintenance Agreement for any non-standard improvements within the right-of-way.
- [RECORD] 15. Applicant is required to file a valid FAA Form 7460-1, "Notice of Proposed Construction or Alteration" with the FAA, in accordance with 14 CFR Part 77, or submit to the Director of Aviation a "Property Owner's Shielding Determination Statement" and request written concurrence from the Department of Aviation;
- [RECORD] 16. If applicant does not obtain written concurrence to a "Property Owner's Shielding Determination Statement," then applicant must also receive either a Permit from the Director of Aviation or a Variance from the Airport Hazard Areas Board of Adjustment (AHABA) prior to construction as required by Section 30.02.26B of the Clark County Unified Development Code. Applicant is advised that many factors may be considered before the issuance of a permit or variance, including, but not limited to, lighting, glare, graphics, etc.;
- [RECORD] 17. No building permits should be issued until applicant provides evidence that a "Determination of No Hazard to Air Navigation" has been issued by the FAA or a "Property Owner's Shielding Determination Statement" has been issued by the Department of Aviation. The Determination of No Hazard must not be expired;
- [RECORD] 18. All cranes and temporary equipment will require separate FAA airspace determinations that provide "Determinations of No Hazard to Air Navigation" and a finding of no significant impact on aircraft activity at Harry Reid International Airport. A Crane/Temporary Equipment plan that includes the separate FAA airspace determinations must be submitted and approved by the DOA (airspace@lasairport.com) prior to the issuance of building permits;
- [RECORD] 19. Applicant must submit a plan to the DOA (airspace@lasairport.com) for review and approval addressing lighting, solar panels, illuminated signage, and reflective surfaces with potential to impact aviation safety. The plan must include a reflectivity (glare) analysis demonstrating that no significant impact on aircraft activity will occur at the Harry Reid International Airport (Airport). All exterior lighting must be dimmable or otherwise adjustable, with the capability to implement modifications if requested by the DOA or the airlines. Building permits shall not be issued until the DOA Airspace Manager has approved the plan, which may include additional conditions necessary to mitigate glare or reflection hazards to aviation;
- [RECORD] 20. The east side of the building shall not include open-air balconies;
- [RECORD] 21. Eastward facing windows must include glass break detectors which integrate into the access control and alarm monitoring system, which is continuously monitored by the security control room;
- [RECORD] 22. Applicant must design their improvements in a manner that accommodates installation of a new security grate at the southern limits of their parking garage improvements. Installation of the grate shall be by the development. The security grate must match the existing grate (south of Mandalay Bay Rd.) in terms of material, configuration, maximum vertical / horizontal opening size, and gauge thickness. The Tropicana Wash underneath the parking structure must be designed in a manner that prevents unauthorized access into the airfield;
- [RECORD] 23. Applicant must submit a construction plan to the DOA (landuse@lasairport.com) and receive approval of said plan before issuance of building permits. The construction plan must describe how the Tropicana Wash will be temporarily secured during construction of the parking garage to prevent unauthorized access into the secure airfield of the Airport.
- [RECORD] 24. Applicant is advised that the FAA's determination is advisory in nature and does not guarantee that a Director's Permit or an AHABA Variance will be approved; that FAA's airspace determinations (the outcome of filing the FAA Form 7460-1) are dependent on petitions by any interested party and the height that will not present a hazard as determined by the FAA may change based on these comments; and that the FAA's airspace determinations include expiration dates.
- [RECORD] 25. Provide a Fire Apparatus Access Road in accordance with Section 503 of the International Fire Code and Clark County Code Title 13, 13.04.090 Fire Service Features.
- [RECORD] 26. Applicant is advised that fire/emergency access must comply with the Fire Code as amended.
- [RECORD] 27. Applicant is advised to contact the SNHD Environmental Health Division, Public Accommodations Plan Review Program at pa@snhd.org or (702) 759-1633 to obtain approval for the construction or remodeling of a public accommodation facility; and to submit construction plans with all schedules to pa@snhd.org at least 30 days prior to beginning construction.
- [RECORD] 28. Applicant is advised that a Point of Connection (POC) request has been completed for this project; to email sewerlocation@cleanwaterteam.com and reference POC Tracking #0186-2026 to obtain your POC exhibit; and that flow contributions exceeding CCWRD estimates may require another POC analysis.

TM-26-500056 (2026-07-21): 14 conditions

- [RECORD] 1. Applicant is advised within 4 years from the approval date a final map for all, or a portion, of the property included in this application must be recorded or it will expire; an application for an extension of time may only be submitted if a portion of the property included under this application has been recorded; a substantial change in circumstances or regulations may warrant denial or added conditions to an extension of time; the extension of time may be denied if there has been no substantial work towards completion; and the applicant is solely responsible for ensuring compliance with all conditions and deadlines.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] 2. Drainage study and compliance;
- [RECORD] 3. Traffic study and compliance;
- [RECORD] 4. Full off-site improvements;
- [RECORD] 5. Right-of-way dedication per Las Vegas South Survey RS-25-500117;
- [RECORD] 6. If required by the Regional Transportation Commission (RTC), dedicate and construct right-of-way for a combination right-turn lane and bus turn-out on Mandalay Bay Road with a 5 foot by 50 foot bus shelter pad behind the sidewalk accordance with RTC standards;
- [RECORD] 7. Las Vegas South Survey must be recorded by the applicant prior to the issuance of building permits;
- [RECORD] 8. Applicant to coordinate with Public Works - Development Review for all driveways on Las Vegas Boulevard;
- [RECORD] 9. Execute a License and Maintenance Agreement for any non-standard improvements within the right-of-way.
- [RECORD] 10. Street suffixes shall be spelt out;
- [RECORD] 11. Directional prefixes shall not be shown on the map.
- [RECORD] 12. Provide a Fire Apparatus Access Road in accordance with Section 503 of the International Fire Code and Clark County Code Title 13, 13.04.090 Fire Service Features.
- [RECORD] 13. Applicant is advised that fire/emergency access must comply with the Fire Code as amended.
- [RECORD] 14. Applicant is advised that a Point of Connection (POC) request has been completed for this project; to email [sewerlocation@cleanwaterteam.com](mailto:sewerlocation@cleanwaterteam.com) and reference POC Tracking #0186-2026 to obtain your POC exhibit; and that flow contributions exceeding CCWRD estimates may require another POC analysis.

VS-26-0218 (2026-07-21): 9 conditions

- [RECORD] 1. Satisfy utility companies' requirements.  
[Clark County Planning/Zoning Minutes, 21 July 2026](#)
- [RECORD] 2. Applicant is advised within 4 years from the approval date the order of vacation must be recorded in the Office of the County Recorder or the application will expire unless extended with approval of an extension of time; a substantial change in circumstances or regulations may warrant denial or added conditions to an extension of time; the extension of time may be denied if the project has not commenced or there has been no substantial work towards completion within the time specified; and the applicant is solely responsible for ensuring compliance with all conditions and deadlines.
- [RECORD] 3. Drainage study and compliance;
- [RECORD] 4. Right-of-way dedication per Las Vegas South Survey RS-25-500117;
- [RECORD] 5. Vacation to be recordable prior to building permit issuance or applicable map submittal;
- [RECORD] 6. Revise legal description, if necessary, prior to recording.
- [RECORD] 7. Provide a Fire Apparatus Access Road in accordance with Section 503 of the International Fire Code and Clark County Code Title 13, 13.04.090 Fire Service Features.
- [RECORD] 8. Applicant is advised that fire/emergency access must comply with the Fire Code as amended.
- [RECORD] 9. Applicant is advised that CCWRD has existing or proposed assets within the area proposed to be vacated per VS-26-0218; CCWRD has no objection to the request for vacation as presented; however, CCWRD requests all existing rights granted to us within the easements/right-of-way are reserved; it is understood that this vacation shall not reduce our rights to operate and maintain our facilities; CCWRD also requests that drivable access be able to handle H-20 loading and is maintained by fee owner; no building, structures, fences or trees shall be placed upon, over or under said parcel(s) of land to be vacated, now or hereafter.

## Reported beyond our record

---

Press coverage, attributed to its publisher. This is not our filing record.

- [PRESS] 2026-04-29. Las Vegas' failed Ferris wheel site sells to developer who ... Contact: Eli Applebaum. No phone or email in the record.  
[reviewjournal.com](#)
- [PRESS] 2026-04-30. Broker: Las Vegas developer buys old Skyvue Ferris wheel ...  
[fox5vegas.com](#)
- [PRESS] 2026-05-19. Eli Applebaum Acquires 12-Acre Development Site On. Contact: Eli Applebaum. No phone or email in the record.  
[traded.co](#)
- [PRESS] 2026-07-21. Clark County approves heart-shaped hotel for Las Vegas ...  
[fox5vegas.com](#)
- [PRESS] 2026-07-21. Resort project replacing failed Las Vegas Strip observation ...  
[news3lv.com](#)
- [PRESS] 2026-07-21. Permit granted for new heart-shaped Las Vegas Strip resort.  
[8newsnow.com](#)
- [PRESS] 2026-07-21. Heart-shaped resort approved by Clark County Zoning ... - KTNV.  
[ktnv.com](#)
- [PRESS] 2026-07-21. New Las Vegas hotel-casino project approved for failed ... Contact: Eli Applebaum. No phone or email in the record.  
[reviewjournal.com](#)
- [PRESS] 2026-07-22. Love is coming to the Las Vegas Strip in the shape of ... Contact: Eli Applebaum. No phone or email in the record.  
[independent.co.uk](#)
- [PRESS] 2026-07-22. Clark County approves proposal for 29-story heart-shaped ...  
[news3lv.com](#)
- [PRESS] 2026-07-22. Heart-shaped casino hotel approved for Vegas Strip's ... Contact: Eli Applebaum. No phone or email in the record.  
[northeasttimes.com](#)
- [PRESS] 2026-07-23. Bally's Chicago and SkyVue Casino plans to advance in ... Contact: Eli Applebaum. No phone or email in the record.  
[mundovideo.com.co](#)
- [PRESS] 2026-07-23. Las Vegas Approves Heart-Shaped Casino on SkyVue Site.  
[ggbmagazine.com](#)
- [PRESS] 2026-07-24. Las Vegas Topic Kulik River Capital.  
[news3lv.com](#)
- [PRESS] 2026-08-03. New heart-shaped hotel approved for Las Vegas Strip ... Contact: Eli Applebaum. No phone or email in the record.  
[traveltomorrow.com](#)
- [ASSESSMENT] 1 further item we hold on this matter is published on a platform where the subject of a post writes it themselves, so it is not quoted here as coverage. It is on the register and can be sent on request.

## What this brief does not cover

The limits of this document, and what it held back.

- [ASSESSMENT] This brief covers one matter and is not a survey. Other projects in Clark County are on our register and are not described here.
- [ASSESSMENT] It is not scoped to a period. Everything we hold on this matter is above, whatever its date.
- [ASSESSMENT] Records are captured from published sources. A matter that has not been published, or that is published somewhere we do not yet capture, will not appear.
- [ASSESSMENT] What this brief holds back is stated with the record counts under "The project" above, and is not repeated here. Nothing else was withheld: no limit of this document dropped anything further, and the market it sits in is one we are still receiving.